

IN THE SENATE

SENATE BILL NO. 1239

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO SEX OFFENDERS; AMENDING SECTION 18-8329, IDAHO CODE, TO REVISE
A DEFINITION AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMER-
GENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-8329, Idaho Code, be, and the same is hereby
amended to read as follows:

18-8329. ADULT CRIMINAL SEX OFFENDERS -- PROHIBITED ACCESS TO SCHOOL
CHILDREN -- EXCEPTIONS. (1) If a person is currently registered or is re-
quired to register ~~under~~ pursuant to the sex offender registration act as
provided in chapter 83, title 18, Idaho Code, it is a misdemeanor for such
person to:

(a) Be ~~upon~~ on or to remain on the premises of any school building or
school grounds in this state, ~~upon~~ on the premises or grounds of any
daycare, or ~~upon~~ on other properties posted with a notice that they
are used by a school or daycare, when the person has reason to believe
children under ~~the age of~~ eighteen (18) years of age are present and are
involved in a school or daycare activity, or when children are present
within thirty (30) minutes before or after a scheduled school or daycare
activity.

(b) Knowingly loiter on a public way within five hundred (500) feet from
the property line of school or daycare grounds in this state, includ-
ing properties posted with a notice that they are used by a school or
daycare, when children under ~~the age of~~ eighteen (18) years of age are
present and are involved in a school or daycare activity, or when chil-
dren are present within thirty (30) minutes before or after a scheduled
school or daycare activity.

(c) Be in any conveyance owned or leased by a school or daycare to trans-
port students to or from school or daycare or a school- or daycare-re-
lated activity when children under ~~the age of~~ eighteen (18) years of age
are present in the conveyance.

(d) Reside within five hundred (500) feet of the property on which a
school or daycare is located, measured from the nearest point of the ex-
terior wall of the offender's dwelling unit to the school's or daycare's
property line, provided however, that this paragraph shall not apply
if such person's residence was established prior to July 1, 2006, for
a school, and prior to July 1, 2020, for a daycare in existence on that
date. This paragraph shall not apply to such person whose residence is
established prior to the establishment of a daycare within five hundred
(500) feet of his dwelling unit.

(e) For purposes of this chapter, "school" means any public or private
school. "Daycare" means any ~~licensed~~ daycare as defined in chapter 11,

1 title 39, Idaho Code, that is licensed or is zoned, permitted, or ap-
 2 proved by a city or county for use as a daycare.

3 The posted notices required in this subsection shall be at least one hundred
 4 (100) square inches, shall make reference to section 18-8329, Idaho Code,
 5 shall include the term "registered sex offender," and shall be placed at all
 6 public entrances to the property.

7 (2) The provisions of subsection (1) (a) and (b) of this section shall
 8 not apply when the person:

9 (a) Is a student in attendance at the school; ~~or~~

10 (b) Is exercising his right to vote in public elections; ~~or~~

11 (c) Is taking delivery of his mail through an official post office lo-
 12 cated on school grounds; or

13 (d) Contacts the school district or daycare office annually and prior
 14 to his first visit of a school year and has obtained written permission
 15 from the district or daycare to be on the school or daycare grounds or
 16 ~~upon~~ on other property posted with a notice that the property is used by
 17 a school or daycare. For the purposes of this section, "contacts the
 18 school district or daycare office" shall include mail, facsimile ma-
 19 chine, or by computer using the internet. The provisions of this sub-
 20 section are required for an individual who:

21 (i) Is dropping off or picking up a child or children and the per-
 22 son is the ~~child~~ child's or children's parent or legal guardian; ~~or~~

23 (ii) Is attending an academic conference or other scheduled ex-
 24 tracurricular school event with school officials present when the
 25 offender is a parent or legal guardian of a child who is partic-
 26 ipating in the conference or extracurricular event. "Extracur-
 27 ricular" means any school-sponsored activity that is outside the
 28 regular curriculum, occurring during or outside regular school
 29 hours, including but not limited to academic, artistic, athletic,
 30 or recreational activities; or

31 (iii) Is temporarily on school or daycare grounds, during school
 32 hours, for the purpose of making a mail, food, or other delivery.

33 (3) The provisions of subsection (1) (d) of this section shall not apply
 34 when the person:

35 (a) Resides at a state-licensed or certified facility for incarceration,
 36 health, or convalescent care; or

37 (b) Stays at a homeless shelter or resides at a recovery facility, if
 38 such shelter or facility has been approved for sex offenders by the
 39 county sheriff or municipal police chief.

40 (4) Nothing in this section shall prevent a school district or daycare
 41 from adopting more stringent safety and security requirements for employees
 42 and nonemployees while they are in district or daycare facilities and/or on
 43 district or daycare properties. If adopting more stringent safety and se-
 44 curity requirements, the school district or daycare shall provide the re-
 45 quirements to any individual listed in subsection (2) (d) (i) through (iii) by
 46 mail, facsimile machine, or by computer using the internet.

47 SECTION 2. An emergency existing therefor, which emergency is hereby
 48 declared to exist, this act shall be in full force and effect on and after
 49 July 1, 2026.